Fort Bend County District Court

Cause No. 2025-CV-0031

George Booker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 25, 2025
Plaintiff's counsel:	Jennifer Black, Montoya & Solis Law Group

PARTIES

Plaintiff George Booekr is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance carrier authorized to transact insurance business in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage under which Plaintiff now seeks recovery.

FACTS

On October 9, 2023, Plaintiff was lawfully parked in a designated space in a commercial parking lot in Pasadena, Texas. While Plaintiff was stationary, a vehicle insured under Defendant's policy backed out of an adjacent space and struck the driver's side of Plaintiff's vehicle. The insured driver did not check for oncoming traffic or pedestrians before reversing. Plaintiff reported the collision to Defendant promptly and provided all information requested. Defendant accepted notice of the claim but has not offered a fair settlement of Plaintiff's losses.

NEGLIGENCE

The insured driver owed a duty to other lot users to operate the vehicle with reasonable care, including keeping a proper lookout and yielding when backing. The insured driver breached that duty by rveersing without looking and by failing to yield to Plaintiff's stationary vehicle. This breach proximately caused the collision and Plaintiff's resulting injuries. Defendant is liable to Plaintiff under the liability coverage of its policy for damages the insured driver caused, and Defendant owed Plaintiff a duty of good faith and fair dealing in adjusting the claim under Texas law.

DAMAGES

As a direct result of the collision, Plaintiff sustained a lower back strain that has required medical evaluation, treatment, and restricted activity. Plaintiff has incurred medical expenses, lost wages, and diminished capacity to work and perform daily activities, and will likely incur further care. Plaintiff seeks recovery of actual damages in the amount of $174,000.00, together with pre-judgment and post-judgment interest, court costs, and such other relief as the Court deems just.